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1(11)

****SJ AB****

****Decision after supervision according to the Data Protection Regulation – SJ AB****

****Decision of the Swedish Authority for Privacy Protection****

The Swedish Authority for Privacy Protection finds that SJ AB (556196-1599) in its handling of the complainant's request for access made on February 9, 2022, has processed personal data in violation of:

- Article 12.3 of the Data Protection Regulation by not fulfilling the complainant's right of access under Article 15 of the Data Protection Regulation without undue delay,
- Article 15.1 a-h and 15.2 of the Data Protection Regulation, by not providing the complainant, as a customer of SJ, with all the information specified in these provisions, and
- Article 15.3 of the Data Protection Regulation by not granting access to all personal data that SJ AB processes about the complainant in the copy of personal data provided by SJ AB.

The Swedish Authority for Privacy Protection issues a reprimand to SJ AB according to Article 58.2 b of the Data Protection Regulation for the violation of Articles 12.3, 15.1 a-h, and 15.2 as well as 15.3 of the Data Protection Regulation.

The Swedish Authority for Privacy Protection orders SJ AB under Article 58.2 c of the Data Protection Regulation to comply with the complainant's request for access under Article 15 of the Data Protection Regulation by, subject to any applicable exceptions in Article 15.4 of the Data Protection Regulation and Chapter 5 of the Data Protection Act, providing the complainant access to all personal data that SJ AB processes about the complainant by supplying the complainant with a copy of the personal data according to Article 15.3 and providing information according to Articles 15.1 a-h and 15.2. The measures must be implemented no later than two weeks after this decision has become final.

1 EU PARLIAMENT AND COUNCIL REGULATION (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

2 The complainant's personal data is specified in Appendix 1.

3 The Act (2018:218) with supplementary provisions to the EU Data Protection Regulation.

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****Account of the supervisory case****

The Swedish Authority for Privacy Protection (IMY) has initiated supervision against SJ AB (SJ) due to complaints regarding a request for access under Article 15 of the Data Protection Regulation.

The complaints primarily indicate the following. The complainant sent a request for access under Article 15 of the Data Protection Regulation to SJ on February 9, 2022, both via the company's portal with signing via bank ID and via email, without receiving a response. The complainant therefore

requested access again under Article 15 of the Data Protection Regulation. The complainant claims that the information they subsequently received was limited and, among other things, lacked answers to the complainant's questions about which third parties the company had provided the complainant's personal data to.

SJ stated in a response to IMY on November 18, 2022, the following. The complainant's initial request for a register extract was received via email on February 9, 2022. SJ has a form on its website to handle the rights of data subjects where the request is signed with mobile bank ID. There is also information on how data subjects should proceed to have their rights fulfilled if mobile bank ID is unavailable. The complainant had technical problems using mobile bank ID, and troubleshooting was conducted. No disruptions at SJ could be identified. The complainant was asked to provide information for manual secure identification by SJ's customer ombudsman on February 15, 2022. After some additional correspondence, SJ received the request for a register extract from the complainant with secure identification through mobile bank ID on April 19, 2022. The register extract was then compiled and sent in two batches. One part on May 3, 2022, for the handling of personal data concerning the complainant as a former employee of SJ and another part on May 18, 2022, for the handling of personal data concerning the complainant as a customer of SJ.

Regarding the information according to Article 15.1 a-h and 15.2 of the Data Protection Regulation, SJ provided information about the processing of personal data concerning the complainant as a former employee. By mistake, the complete information about the processing of personal data concerning the complainant as a customer was not compiled, and only a brief version was provided. The complete text is readily available on the company's website. SJ has noted that the information provided in connection with the register extract, including regarding transfers to third countries, requires clarification.

Regarding the copy of the personal data being processed according to Article 15.3, SJ's position is that when the register extract was provided in May 2022, it was done in accordance with SJ's then-current and established routine and that the complainant was given access to all personal data that SJ processes. Due to information from the complainant that emerged in a civil legal dispute, SJ conducted further investigations and found the following.

At the time, it was not part of SJ's routine to search SJ's email system. As a result, personal data about the complainant in emails managed outside customer service did not form part of the register extract. When searching in the customer case system, SJ searched for the complainant's email address in lowercase without any results. The part of the register extract that concerned customer cases was therefore empty and removed. As a result, personal data about the complainant in customer cases did not form part of the register extract. In the additional investigations that SJ conducted due to the civil legal dispute, SJ searched using uppercase letters in e-

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the email address and could find the customer case concerning the request for access. SJ was not aware that the system was sensitive to lowercase and uppercase letters.

In the part of the register extract that concerned customer cases, there was also information on how a data subject should act in the event that a data subject wished to access emails sent between a data subject and customer service, as well as if one wanted to access conversations held with customer service. Since that part was removed, the complainant did not receive this information. SJ has determined that this information should also be supplemented with a notice on how a data subject should act if they wish to access personal data that appears in chats with SJ's customer service.

Regarding the information in travel history, the complainant provided an email address and a phone number when the complainant identified themselves with mobile bank ID on the website. When the request was received, SJ was able to retrieve, based on the personal identification number linked to the relevant bank ID, the complainant's customer profile with SJ as an SJ Prio member. In the customer profile, a different email address and a different phone number are registered than those

provided in connection with the request. The search for personal data in travel history was conducted solely based on the contact details that were in SJ's customer profile. This is stated in the register extract under the heading purchase and travel history. This means that the travel history in the register extract is not complete as the complainant has also booked trips using the email address and phone number provided in connection with the request for the register extract. The reason for this routine is that SJ did not want to risk that personal data belonging to someone other than the person identified with bank ID would be included in the extract.

In the register extract concerning information about the complainant in their capacity as an employee, it did not include information of a more technical nature that may appear in logs. As the data is extensive, the complainant has been informed of this in a cover letter to the register extract and urged to contact SJ with a request to access this information.

Personal data related to the complainant's employment at SJ has been obtained from SJ's digital HR system and includes the complainant's employment from the year 2008 as the system handles employment data from 2008 onwards. SJ has physical personnel records for both current and former employees stored with a data processor. In later searches, SJ has been able to ascertain that there is additional information concerning the complainant related to previous employments before the year 2008. SJ notes that the text in the register extract should be supplemented with information that if a data subject requesting an extract has been employed by SJ before the year 2008 and wishes to access these, the data subject should specify this, and older personnel records should then be requested from the data processor.

SJ is currently reviewing and updating the procedures regarding register extracts to ensure compliance with the General Data Protection Regulation. For SJ to be able to disclose the complainant's personal data that may appear in extensive data collections, it may be necessary for the complainant to provide additional information that makes the identification of their personal data possible and/or for the complainant to specify their request.

SJ concluded the matter regarding the complainant's request on May 18, 2022, after having assessed that a complete register extract had been provided in a timely manner. SJ has not perceived it as an obligation under the General Data Protection Regulation to subsequently rectify deficiencies in a register extract that have emerged after the disclosure. SJ will

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to handle future requests for access, taking into account the deficiencies that have arisen.

Justification of the decision

Applicable provisions

The data controller is obliged to inform anyone who requests it whether personal data concerning the applicant is being processed or not. If such data is being processed, the data controller, in accordance with Article 15 of the General Data Protection Regulation (GDPR), shall provide the data subject with additional information regarding, among other things, the purposes of the processing and the recipients of the data, as well as a copy of the personal data being processed by the data controller.

Article 15.1 and 15.2 specify what additional information must be provided to the data subject.

According to Article 15.3, the data controller shall provide the data subject with a copy of the personal data that is being processed.

Article 11.1 of the GDPR states that if the purposes for which the data controller processes personal data do not require or no longer require the identification of the data subject by the data controller, the data controller shall not be obliged to retain, acquire, or process additional information to identify the data subject solely for the purpose of complying with this regulation.

According to Article 11.2 of the GDPR, if the data controller, in the cases referred to in paragraph 1 of this article, can demonstrate that it is unable to identify the data subject, the data controller shall, if possible, inform the data subject of this. In such cases, Articles 15–20 shall not apply, except when the data subject provides additional information that makes identification possible for the exercise of their

rights under these articles.

Article 12.2 of the GDPR states that the data controller shall facilitate the exercise of the data subject's right of access under Article 15.

Article 12.6 of the GDPR states that without prejudice to the application of Article 11, if the data controller has reasonable doubts regarding the identity of the natural person making a request under Articles 15–21, it may request additional information necessary to confirm the identity of the data subject.

Article 12.3 of the GDPR indicates that the data controller shall provide the data subject with information about the actions taken in accordance with Article 15 of the GDPR upon request, without undue delay and in any event no later than one month after receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity of the request and the number of requests received.

If the one-month deadline is extended, the data controller shall inform the data subject of the extension within one month of receiving the request and shall state the reasons for the delay.

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Assessment by the Swedish Authority for Privacy Protection

IMY has, based on the current complaints in the case, reviewed the company's actions in the specific instance regarding whether the company has handled the complainant's request for access made on February 9, 2022, in accordance with Article 12 and Article 15 of the General Data Protection Regulation (GDPR). IMY has not reviewed SJ's general procedures for handling requests for access under Article 15 of the GDPR.

Has the company handled the complainant's request for access in a timely manner according to Article 12.3 of the GDPR?

A data controller shall, according to Article 12.3 of the GDPR, handle a request for access under Article 15 of the GDPR without undue delay and at the latest within one month from the date the request was received. The investigation in the case shows that SJ received the complainant's request for access on February 9, 2022. The deadline thus begins to run from that date. The investigation further shows that the complainant had technical problems using mobile Bank ID for identity verification, which is why SJ, on February 15, 2022, i.e., six days after the complainant submitted their request, reached out to the complainant with a request for additional information for manual secure identification in order to ensure that personal data is not disclosed to unauthorized persons.

IMY assesses that SJ, without undue delay, reached out to the complainant with a request for additional information to verify the complainant's identity and that the deadline under such circumstances is therefore temporarily paused until the data controller has received the information needed for verification. The investigation in the case shows that the complainant subsequently verified their identity via mobile Bank ID on April 19, 2022. The deadline thus continues to run from that day.

In light of the above circumstances, IMY finds that SJ, in order to comply with the stipulated deadline of one month, should have provided access under Article 15 of the GDPR no later than May 13, 2022. The investigation in the case shows that the complainant received certain information on May 3, 2022, but that other information was only provided on May 18, 2022. It has not been established in the case that SJ informed the complainant of an extension of the stipulated one-month deadline.

IMY thus finds that SJ has processed the complainant's personal data in violation of Article 12.3 of the GDPR by not fulfilling the complainant's request for access under Article 15 of the GDPR without undue delay, or at the latest within one month.

Has the company provided information in accordance with Article 15.1 a-h and 15.2 of the GDPR?

The investigation in the case shows that SJ processes personal data about the complainant both as a customer of SJ and as a former employee of SJ. SJ has stated that the complainant has been provided

with information according to Article 15.1 a-h and 15.2 of the GDPR related to the personal data SJ processes about the complainant in their capacity as a former employee of the company.

4 Cf. European Data Protection Board (EDPB) guidelines on the right of access – Guidelines 01/2022 on data subject rights – Right of access, version 2.0 (final adopted on March 28, 2023), point 159.

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The investigation indicates, however, that the complainant, in their capacity as a customer of SJ, has only been provided with a brief version of the supplementary information that, according to Article 15.1 a-h and 15.2 of the General Data Protection Regulation (GDPR), should be provided to the data subject upon a request for access. What SJ has stated regarding the availability of complete information on the company's website does not remedy this deficiency.

IMY thus concludes that SJ, in its handling of the complainant's request for access, has processed personal data in violation of Article 15.1 a-h and 15.2 of the GDPR by failing to provide the complainant with all the information specified in these provisions.

Has the company provided access to all personal data under processing in accordance with Article 15.3 of the GDPR?

The purpose of the right of access is for the data subject to become aware of the processing that occurs and to be able to verify that it is lawful. The data controller must therefore ensure that the copy of personal data provided contains all the personal data being processed about the data subject and is presented in a manner that is understandable to the data subject.

Copy of personal data SJ processes about the complainant in their capacity as a customer

SJ has stated that personal data about the complainant in emails managed outside of customer service were not included in the copy of personal data provided to the complainant.

Furthermore, SJ has stated that personal data about the complainant in SJ's customer case system was also not included in the copy of personal data provided to the complainant because a search using the complainant's email address in lowercase did not yield any results in the system. SJ subsequently noted that at the time of the request, there was a customer case regarding the complainant's request for access, but it was not discovered because SJ was unaware that the system was sensitive to lowercase and uppercase letters. As a result of the search on the complainant's email address not yielding any results and personal data about the complainant in SJ's customer case system not being included in the copy provided to the complainant, the complainant was also not informed about how they could access the personal data that is not typically included in the copy of personal data that SJ provides to the data subject, namely personal data in the email system related to customer cases and in conversations with customer service. The complainant has thus also not been provided with these personal data in the copy of personal data that was given. The copy of personal data also did not include personal data from chats with customer service. SJ has not provided any information to the complainant about how access to these personal data can be requested.

Regarding access to personal data in travel history, SJ has stated that the company has a routine of only searching for the email address and phone number that are entered in the customer profile linked to the bank ID used in the request. The reason for this routine, according to SJ, is that they did not want to risk that personal data belonging to another data subject than the person identified by the bank ID would be included in the extract.

In this regard, IMY makes the following assessment. A data subject should be given access to all information that the data controller processes about them. This means, among other things, that the

5 Cf. European Data Protection Board (EDPB) guidelines on the right of access – Guidelines 01/2022 on data subject rights – Right of access, version 2.0 (final adopted on March 28, 2023), point 10.

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The data controller shall search for personal data about the data subject in its IT systems. IMY believes that the data controller, in such a search, should use all available information about the data subject that is likely to result in hits, considering how the information has been structured in the systems. If the information has been structured based on direct or indirect identifiers, such as customer numbers, usernames, or email addresses, the data controller's search should also include these factors, provided that it possesses information that allows linking these identifiers to the data subject or receives that information from the data subject.

The information in the case indicates that the complainant, when making the request and identifying themselves with mobile bank ID, provided a different email address and phone number than those in the customer profile. IMY considers that it was incumbent upon SJ to search for personal data in the form of travel history linked to the information provided by the complainant, in this case, an email address and a phone number. In the event that SJ, after obtaining personal data in travel history from such a search, had doubts regarding the connection of the personal data to the complainant or had reasonable grounds to question the identity of the complainant, SJ would have been required to request more information from the complainant in such a situation. The investigation has not revealed that SJ provided the complainant with the opportunity to submit additional information to confirm the identity behind the email address and phone number. IMY notes that SJ, by only searching for personal data in travel history linked to the contact details in the customer profile despite information from the complainant about a different email address and phone number, has therefore not taken sufficient measures to ensure that the copy of personal data included all the personal data that SJ processed about the complainant at the time of the request. As a result of SJ only searching for the email address and phone number that were in the complainant's customer profile, the complainant did not gain access to all of their personal data in the travel history.

In summary, IMY concludes, in light of the above, that the copy of personal data that SJ processes about the complainant in their capacity as a customer and that SJ has provided to the complainant did not include all personal data that SJ processed about the complainant at the time of the request.

Copy of personal data SJ processes about the complainant in their capacity as a former employee
In the copy of personal data that SJ processes about the complainant in their capacity as a former employee of SJ and that SJ has provided to the complainant, only personal data from SJ's digital HR system—which manages employment data from 2008 onwards—has been included. SJ has physical personnel records for both current and former employees stored with a data processor and has established that there is additional information regarding the complainant related to previous employment before 2008. The copy of personal data provided to the complainant did not include personal data related to the complainant's employment prior to 2008. SJ has also not provided any information to the complainant on how access to this personal data can be requested.

In the copy of personal data that SJ processes about the complainant in their capacity as a former employee of SJ, there has not been included data of a more technical nature that may occur in logs, such as logs of logins to various systems. SJ has stated in its response

6 Cf. European Data Protection Board (EDPB) guidelines on the right of access – Guidelines 01/2022 on data subject rights – Right of access, version 2.0 (final adopted on March 28, 2023), point 125.

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stated that the complainant has been informed in a cover letter about this and how they can request access to this information.

In this regard, IMY makes the following assessment. The starting point for a request for access is that the data subject should have access to all personal data that the data controller processes about the person requesting access. However, IMY believes that there is no obstacle to dividing the copy of

personal data as long as the right to access is fulfilled. Thus, a division of the copy of personal data must not restrict the right to access or make its exercise more difficult. This requires that the data controller provides clear information to the data subject that the copy of personal data is divided, what information is contained in the different parts, and how the data subject can access these. In order for the division of the copy of personal data into different parts not to restrict the right or make its exercise more difficult, it must also not be required that the data subject needs to return to the data controller multiple times to access all personal data or that it is complicated to request access to all personal data. Therefore, IMY believes that the data subject should have the opportunity to request access to all parts from the beginning and that it should be easy to access them.

That information about the division of the copy of personal data is provided from the outset is thus a prerequisite for the data controller to be able to limit the disclosure of the personal data it processes. IMY notes that SJ has provided information that there are additional data to access only in connection with granting access to other personal data that the company processed about the complainant in their capacity as a former employee. Thus, the complainant has not initially had the opportunity to request access to all personal data that SJ processes about the complainant in their capacity as a former employee and has also had to return to the data controller if the complainant wanted to access additional personal data. In light of the fact that SJ provided such information only at a later stage, IMY assesses that the conditions for SJ to limit the disclosure of the personal data that SJ processed about the complainant are not fulfilled, and therefore SJ should have disclosed all personal data that the company processed about the complainant in their capacity as a former employee, i.e., also the data of a more technical nature.

In summary, IMY finds that the copy of personal data that SJ processes about the complainant in their capacity as a former employee, and which SJ has provided to the complainant, did not include all personal data that SJ processed about the complainant at the time of the request.

Summary Assessment

In summary, IMY finds that the investigation in the matter shows that SJ has processed the complainant's personal data in violation of Article 12.3 of the General Data Protection Regulation by not handling the complainant's request for access under Article 15 of the General Data Protection Regulation without unnecessary delay, or at the latest within one month. IMY has further found that SJ, in its handling of the complainant's request for access, has processed personal data in violation of Articles 15.1 a-h and 15.2 of the General Data Protection Regulation by not providing the complainant in their capacity as a customer with all the information specified in these provisions. IMY also notes that SJ has processed the complainant's personal data in violation of Article 15.3 of the

7 Cf. European Data Protection Board (EDPB) guidelines on the right of access – Guidelines 01/2022 on data subject rights – Right of access, version 2.0 (final adopted on March 28, 2023), points 144-146.

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the General Data Protection Regulation by the copies of personal data that SJ processes about the complainant in their capacity as a customer and former employee, and which SJ provided to the complainant on May 3, 2022, and May 18, 2022, did not include all personal data that SJ processed about the complainant at the time of the request.

Choice of Intervention

Article 58.2 and Article 83.2 of the General Data Protection Regulation indicate that IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines may be imposed in addition to or instead of other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 specifies the factors to be considered when deciding whether administrative fines should be imposed and when

determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, issue a reprimand instead of imposing a fine in accordance with Article 58.2 b. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

IMY notes the following relevant circumstances. The current supervision involves a review of how SJ has handled an individual complainant's request for access. IMY has found that SJ has failed in its obligations regarding the right of access in relation to the complainant. However, SJ has taken measures, albeit insufficient, to meet the complainant's request for access. Even though the complainant's right of access has not been fully met, the deficiencies that have occurred are therefore of a less serious nature than if the request had gone unanswered. Regarding the identified deficiency under Article 12.3 of the General Data Protection Regulation, the prescribed deadline of one month has only been exceeded by a few days. SJ has further stated that they have taken measures by reviewing and updating procedures regarding extracts from registers to ensure compliance with the General Data Protection Regulation and that the company will handle future requests for extracts from registers considering the deficiencies that have emerged in the current case. Furthermore, the company has not previously been found to have infringed the General Data Protection Regulation.

In light of the circumstances surrounding the identified infringements, IMY finds that these are minor infringements in the sense referred to in Recital 148 and that SJ should therefore be given a reprimand in accordance with Article 58.2 b of the General Data Protection Regulation for the identified deficiencies.

The investigation in the case has revealed that the complainant has not received access to more personal data or additional information after the response to the request for access provided on May 18, 2022. IMY therefore finds that there is reason to, based on Article 58.2 c, order SJ to comply with the complainant's request under Article 15 of the General Data Protection Regulation by, subject to any applicable exceptions in Article 15.4 of the General Data Protection Regulation and Chapter 5 of the Data Protection Act, providing the complainant with access to all personal data that SJ processes about the complainant by supplying the complainant with a copy of all personal data in accordance with Article 15.3 of the General Data Protection Regulation and providing complete information in accordance with Articles 15.1 a-h and 15.2 of the General Data Protection Regulation. The measures must be implemented no later than two weeks after this decision has become final.

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This decision has been made by the designated decision-maker Karin Ekström after presentation by the lawyer Måns Lysén.

Karin Ekström, 2023-06-29 (This is an electronic signature)

Appendix

1. Information about the complainant

Copy to

1. Data Protection Officer for SJ AB

2. The complainant

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How to Appeal

If you wish to appeal the decision, you should write to the Swedish Data Protection Authority. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be

received by the Swedish Data Protection Authority no later than three weeks from the day you received notice of the decision. If the appeal has been submitted in a timely manner, the Swedish Data Protection Authority will forward it to the Administrative Court in Stockholm for examination. You may email the appeal to the Swedish Data Protection Authority if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.